

**State of New York
Monroe County Supreme & County Courts**

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In re: Matter of the Application for a.
Risk Level Determination Pursuant to.
Article 6-C of the Correction Law.
(Sex Offender Registration Act) as to:

Index No: None Provided by Clerk
Hearing Date: September 11, 2026
Before: Hon. Karen Bailey Turner, J.C.C.

JEFFREY BERNECKY,
NYSID No. OS6430

**MOTION FOR FUNDS TO RETAIN A
FORENSIC RISK-ASSESSMENT
EXPERT PURSUANT TO COUNTY
LAW § 722-c**

Respondent, Pro Se.

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I. RELIEF SOUGHT

Respondent moves, pursuant to County Law § 722-c, for an order authorizing funds to retain a forensic risk-assessment expert to evaluate Respondent and, if the evaluation supports it, to offer an opinion addressed to the "threat to public safety" finding Correction Law § 168-l(6) requires before Respondent may be classified a Risk Level Three sex offender. This motion is filed as a separate, standalone application, not appended to or incorporated within any other filing in this matter, so that it may be considered on its own terms. Because County Law § 722-c contemplates this application being made and decided in an ex parte proceeding, Respondent respectfully requests that this Court (a) hear and decide this application ex parte, without the District Attorney's presence or input, consistent with the statute's own procedure and the ordinary practice for applications of this kind; and (b) enter an order sealing this motion, all supporting papers, and any order granting or denying it, pursuant to Judiciary Law § 2-b(3) and 22 NYCRR 216.1, on the ground that Respondent's decision whether and how to use the results of a privately funded forensic evaluation is a matter of defense strategy the premature disclosure of which this ex parte procedure is specifically designed to prevent, and Respondent requests that the Court enter the written good-cause finding 22 NYCRR 216.1 requires as part of that order.

II. STATEMENT OF FACTS

Respondent is indigent. Respondent has contemporaneously filed an Application for Assignment of Counsel, pursuant to Correction Law § 168-n(3) and County Law Article 18-B, on the ground that he is financially unable to retain counsel; that application, and the facts supporting it, are incorporated here by reference, and Respondent is prepared to submit the same financial affidavit, or an updated version of it, in support of this motion. Once counsel is assigned, assigned counsel should review this application and, if appropriate, adopt, ratify, or refile it in counsel's own name.

The Board of Examiners of Sex Offenders' recommendation package — forwarded under cover memorandum dated July 23, 2026, and consisting of a Risk Assessment Instrument, a four-page Case Summary, and a Sex Offender Designation Form — recommends that Respondent be classified a Risk Level Three sex offender. That recommendation rests entirely on Override 1, triggered by Respondent's 2012 prior felony sex-crime conviction. The Case Summary states that the prior conviction "automatically results in a presumptive Risk Level III, as this provides compelling evidence that he poses a serious risk to public safety that is not captured by scoring alone." Case Summary at 3. Nowhere in the Board's recommendation package does any psychiatric or psychological evaluation, actuarial risk instrument beyond the RAI itself, or expert opinion of any kind address Respondent's current risk to public safety. As set out more fully in Argument B of Respondent's contemporaneously filed Memorandum of Law in Support of a Level Two Risk Classification ("Memorandum of Law"), Correction Law § 168-l(6) authorizes a Level Three classification only where both a high risk of repeat offense and an independent threat to public safety are shown; Respondent does not contest the first element, but the Board's recommendation package offers no evidence — clinical, actuarial, or otherwise — addressed to the second.

The September 11, 2026 hearing date makes prompt consideration of this motion necessary. Respondent has not yet retained a specific forensic risk-assessment expert, consistent with the ex parte, need-first procedure County Law § 722-c contemplates; Respondent intends to identify and retain a qualified expert promptly upon a favorable ruling on this motion, and, if the

Court directs, will submit the proposed expert's qualifications and a projected scope of services and cost for the Court's approval before funds are expended. Should the Court grant this application, Respondent will require time to arrange the evaluation and, if it supports his position, obtain a report or opinion before the hearing or any adjourned date — a further, independent reason this motion should be decided promptly and, if necessary, in conjunction with Respondent's contemporaneously filed motion to adjourn.

III. STATUTORY BASIS

County Law § 722-c authorizes a court, upon an ex parte finding "that investigative, expert or other services are necessary" and that the person seeking them "is financially unable to obtain them," to "authorize counsel . . . to obtain the services on behalf of the defendant or such other person." The statute extends this authority, by its own text, to "the defendant or other person described in section two hundred forty-nine or section two hundred sixty-two of the family court act, article six-c of the correction law or section four hundred seven of the surrogate's court procedure act." County Law § 722-c. Article six-c of the Correction Law is the Sex Offender Registration Act. The Legislature, not a court reaching by analogy, wrote SORA respondents directly into New York's general indigent-expert-funding statute, on the same footing as respondents in Family Court and Surrogate's Court proceedings.

The Second Department has confirmed that this authority reaches SORA proceedings specifically: "Although a defendant in a SORA proceeding may be entitled to the appointment of an expert upon a court's finding that expert services are necessary (see County Law § 722-c), the Supreme Court here did not err in declining the defendant's request for the appointment of a psychiatrist to assist him in seeking a downward departure. The defendant did not establish that appointment of an expert was necessary." *People v. Linton*, 94 A.D.3d 962, 962-63 (2d Dep't 2012).

No provision of SORA itself gives Respondent a right to a forensic evaluation. Correction Law Article 6-C's twenty-four sections contain no mechanism, funded or otherwise, by which a

respondent may obtain a psychological or psychiatric evaluation to contest the Board's own dangerousness conclusion; the Board itself "may consider" psychological or psychiatric profiles in developing its Guidelines, Correction Law § 168-l(5)(e), but that describes an input into the Board's own rulemaking, not a tool available to the individual offender. County Law § 722-c is accordingly not a request that this Court read something into SORA that is not there. It is a request that this Court apply a separate statute the Legislature has already made available to SORA respondents by name.

IV. ARGUMENT

A. County Law § 722-c Reaches This Proceeding, and Respondent Is Indigent

County Law § 722-c's applicability here is not a matter of interpretation. The statute names "article six-c of the correction law" — SORA — as one of the proceedings its funding mechanism covers, on the same terms as Family Court Act and Surrogate's Court Procedure Act proceedings. Respondent's indigency is established in his contemporaneously filed Application for Assignment of Counsel, incorporated by reference above, and this motion asks the Court to make the same financial-inability finding for purposes of § 722-c that it is separately asked to make for purposes of assigning counsel under Correction Law § 168-n(3) and County Law Article 18-B.

B. Override 1 Supplies No Evidence at All on the Independent "Threat to Public Safety" Element, and a Forensic Evaluation Is the Only Available Mechanism to Generate Any

Correction Law § 168-l(6) authorizes a Level Three classification only "if the risk of repeat offense is high and there exists a threat to the public safety" — two elements, joined by "and," each requiring its own proof. As Argument B.1 of the accompanying Memorandum of Law sets out in full, Override 1 is triggered by nothing more than the existence of a qualifying prior conviction; it answers, at most, whether Respondent presents a high risk of repeat offense. It does not, and by its own terms cannot, supply an individualized finding on the separate question whether Respondent currently presents a threat to public safety. The Board's own Case Summary confirms this: it treats the bare fact of the 2012 conviction as itself "compelling evidence" of a public-safety threat,

without citing any clinical finding, actuarial instrument, or expert opinion in support. Case Summary at 3.

The result is that the record before this Court contains no evidence of any kind — not weak evidence, none — addressed to the specific statutory element on which Respondent's classification actually turns. That gap is not a reason to deny this motion; it is the necessity showing the motion is built on. A forensic risk-assessment evaluation is not sought here as generic assistance in arguing Respondent's position, and it is not offered as a substitute for the legal arguments Argument A and Argument B of the accompanying Memorandum of Law already make. It is sought because it is the only mechanism presently available to Respondent to generate any evidence at all on the one statutory element the Board's own recommendation package leaves entirely unaddressed. As Argument B.4 of the Memorandum of Law develops further, Mental Hygiene Law Article 10 — the proceeding structurally closest to what § 168-l(6)'s public-safety finding is supposed to represent — not only requires the State to build its own dangerousness case on clinical evidence, but funds an examiner of the respondent's own choosing when the respondent cannot otherwise afford one. Mental Hygiene Law § 10.06(e). SORA gives Respondent no comparable right by its own text. County Law § 722-c is the only means by which he can obtain, at public expense, the kind of evidence Article 10 would have given him as a matter of course.

Level Three's practical consequences make this more than an academic gap. A Level Three offender must personally verify his address with local law enforcement every ninety calendar days, Correction Law § 168-h — an obligation with no Level Two equivalent — and a Level Three offender's public disclosure additionally includes his place of employment. Correction Law § 168-l(6)(c). Whatever this Court ultimately concludes about the merits of Respondent's classification, the consequence of getting the "threat to public safety" finding wrong is real, ongoing, and more severe at Level Three than at Level Two, and the record on that specific question is, at present, entirely one-sided: the Board has offered its own unattributed narrative, and Respondent has had no means, funded or otherwise, to test it.

That asymmetry cuts one way, not both. Correction Law § 168-o(3), addressed in Argument B.5 of the Memorandum of Law, lets the District Attorney petition to move an offender's classification upward later, on real post-classification evidence — a new crime or a supervision violation indicating increased risk. It gives no comparable mechanism for correcting a classification downward once made. If this Court classifies Respondent a Level Three offender today without any clinical evidence on the public-safety element, and a later evaluation or the passage of time under supervision were to show that classification was wrong, § 168-o supplies no path to undo the years of quarterly in-person verification and employer disclosure Respondent will have carried in the meantime. The necessity for getting the public-safety finding right now, with the only kind of evidence capable of addressing it, is accordingly greater than it would be if SORA allowed correction in both directions. It does not.

C. The General Recidivism Research Marshaled in This Record Establishes Why This Case Presents a Genuinely Contested, Individualized Question

Respondent's contemporaneously filed Memorandum of Law marshals, in support of his position that he is not a threat to public safety, three sources of general contact-offense recidivism data: the Court of Appeals' own finding that only approximately four percent of the offenders in the underlying validation studies were later convicted of a new hands-on sexual offense, *People v. Gillotti*, 23 N.Y.3d 841, 845 (2014); the United States Sentencing Commission's 2012 recidivism findings for federal child-pornography offenders; and the Board of Examiners' own June 2012 Position Statement. Respondent offers those sources here for a narrower and different purpose than the one they serve in the Memorandum of Law. They are not offered as evidence supporting Respondent's classification argument on the merits, and they are not offered as a substitute for the forensic evaluation this motion requests. They are offered to establish that the question Override 1 never addresses — where, within the population Gillotti describes, this particular Respondent actually falls on the contact-recidivism risk spectrum — is a genuinely contested, individualized factual question that the current record does not resolve in either direction.

New York's own case law confirms that this is precisely the kind of question only an individualized showing can answer. The Second Department has held that a defendant may not rely on a low score on a general, validated actuarial instrument as a substitute for the individualized showing SORA's risk-assessment structure requires, though it left open reliance on risk factors specifically and individually identified as applicable to that particular defendant. *People v. Curry*, 2017 NY Slip Op 09184 (2d Dep't 2017). The Court of Appeals reached the same conclusion from the opposite direction in *Gillotti* itself, holding that "there is nothing inherent in child pornography offenses that convinces us to completely ignore the plain language of the guidelines" and confirming that the guidelines' individualized structure controls over any categorical, offense-type-based exemption. *Gillotti*, 23 N.Y.3d at 858. General population data of this kind identifies a question; locating any particular respondent within it requires individualized proof, not a citation to the aggregate.

Respondent flags this distinction affirmatively, rather than leaving it for the Board to raise it first. The alternative framing is available, and it would be wrong: a court could reasonably ask why public funds are needed for an expert if the general research already supplies the answer. It does not. The research identifies a population-level range within which contact-recidivism risk varies; only an individualized clinical and actuarial evaluation of Respondent himself can locate him within that range, and that evaluation — not a citation to the literature — is the entire relief this motion seeks.

Respondent is aware of no New York or other authority squarely deciding, in an expert-funding-necessity posture, whether general population risk research may be used this way. This argument is accordingly presented as one of first impression, grounded in the individualized-proof principle *Curry* and *Gillotti* already apply on the merits, and not as a settled or previously accepted theory.

D. New York's Own Necessity Standard Is a Reasonable-Probability, Specific-Facts Test, and This Motion's Showing Fits the Pattern of Cases That Grant Relief

New York courts applying County Law § 722-c ask whether the application supplies, in the formulation attributed to *People v. Lowery*, 7 Misc 3d 1032(A) (White Plains City Ct. 2005), "specific factual details which show to a reasonable probability that the forensic services would aid in the defense or produce relevant evidence." Courts applying that standard have consistently denied funding where the application states a conclusion rather than a fact-specific connection between the requested service and a contested issue in the case. See, e.g., *People v. Rockwell*, 18 A.D.3d 969 (3d Dep't 2005) (no error denying investigator funds where the defendant only asserted that an investigator would be helpful); *Matter of Garfield M.*, 128 A.D.2d 876 (2d Dep't 1987) (no abuse of discretion denying an independent psychological expert where the record already contained an extensive evaluation on the same subject). Neither defect is present here. Respondent does not assert, in the abstract, that an expert would be helpful; Section B above identifies the specific statutory element — the independent "threat to public safety" finding — the current record leaves entirely unaddressed. And unlike the defendant in *Garfield M.*, Respondent faces no existing evaluation of that element to duplicate; the Board's own recommendation package contains none.

Where an application instead identifies a specific, unaddressed evidentiary gap, New York courts have granted § 722-c funding, and reversed denials, as an improvident exercise of discretion. *People v. Hatterson*, 63 A.D.2d 736 (2d Dep't 1978) (denial of psychiatric funds improvident where the prosecution had offered expert psychological testimony the defense had no means to test). Most directly on point, the First Department has already held that County Law § 722-c's necessity inquiry incorporates the same constitutional concern the United States Supreme Court articulated in *Ake v. Oklahoma*, 470 U.S. 68 (1985): "when a state undertakes to prosecute an indigent defendant, it must also take whatever measures are necessary to assure that the defendant is able to participate meaningfully in the proceeding," and an indigent applicant need not show that a contested issue "might succeed," but only that it "will be an important factor" in the proceeding. *People v. Vale*, 133 A.D.2d 297, 299-300 (1st Dep't 1987). The *Vale* court reversed the denial of the § 722-c application before it as "most improvident." *Id.* Respondent's showing here is, if

anything, the more direct case: not a contested issue that may become important, but a statutory element the Board's own record already concedes it has not addressed at all.

Federal courts applying the analogous indigent-services statute, 18 U.S.C. § 3006A(e), ask substantially the same question under what several circuits call the "private attorney" standard: whether "a reasonable attorney would engage such services for a client having the independent financial means to pay for them." *United States v. Alden*, 767 F.2d 314, 318-19 (7th Cir. 1984) (quoting *United States v. Bass*, 477 F.2d 723, 725 (9th Cir. 1973)). Respondent cites this federal authority not as binding law, but as reinforcement of a standard New York's own courts have already adopted: Vale's reasonable-probability, important-factor inquiry and Alden's private-attorney inquiry ask, in substance, the same question, and New York need not look outside its own case law to reach the same result those federal cases reach.

Monroe County's own courts have already applied this standard to grant § 722-c relief on a closely analogous theory, and the Fourth Department — the department that will govern any appellate review of this Court's decision — affirmed. In *People v. Bailey*, 47 Misc 3d 355 (County Ct, Monroe Co. 2014), *aff'd* 2016 NY Slip Op 07490 (4th Dep't 2016), the County Court granted § 722-c funding on the theory that the state of the forensic science bearing on a contested scientific question had become unsettled, such that only individualized expert analysis could resolve it for the case at hand. *Bailey* arose in a different procedural posture — a post-conviction motion under CPL Article 440 challenging a Shaken Baby Syndrome conviction on unsettled forensic science, not a pre-hearing necessity motion of this kind — but its underlying reasoning transfers directly here: the general recidivism research discussed in Section C above shows that where a given respondent falls on the contact-recidivism risk spectrum is unsettled without individualized analysis, and *Bailey* confirms that this Court's own department has already accepted that kind of showing as sufficient to warrant funding.

E. Linton Confirms This Relief Is Available in a SORA Proceeding Specifically — and Shows What an Insufficient Showing Looks Like, a Mistake This Motion Is Built to Avoid

The general § 722-c standard discussed in Section D above is confirmed, in the SORA context specifically, by Linton. Linton establishes both halves of what this motion needs to show. It confirms that "a defendant in a SORA proceeding may be entitled to the appointment of an expert upon a court's finding that expert services are necessary," 94 A.D.3d at 962-63 — the relief Respondent seeks here is not novel. But it also shows, candidly, what an insufficient showing looks like: the Second Department affirmed denial of the defendant's request because he sought "the appointment of a psychiatrist to assist him in seeking a downward departure," without tying that request to any specific gap in the record before the court. *Id.* Linton's own opinion does not describe what showing that defendant actually made beyond that generic framing — only that it was not enough.

This motion is built to avoid exactly that mistake. Respondent is not asking this Court to fund an expert to help him argue for a departure in the abstract. Respondent is identifying a specific, currently unaddressed statutory element — the independent "threat to public safety" finding Correction Law § 168-l(6) requires — on which the Board's recommendation package offers no evidence of any kind, and asking this Court to fund the one mechanism available to generate any evidence on that element at all. That is the kind of record-grounded necessity showing Linton's own defendant failed to make, not a repetition of it.

F. The Compensation Cap Should Be Confirmed as a Condition of Any Order

County Law § 722-c compensates authorized services "within the limits prescribed by law." Respondent does not ask this Court to fix a specific dollar figure in this motion. Respondent respectfully requests that any order granting this motion authorize compensation up to whatever cap is currently prescribed by law, with the amount confirmed on the record or in the order itself.

V. WHEREFORE

WHEREFORE, Respondent respectfully requests that this Court:

1. find, pursuant to County Law § 722-c, that expert services — specifically, a forensic risk-assessment evaluation addressed to the independent "threat to public safety" finding Correction Law § 168-l(6) requires — are necessary, and that Respondent is financially unable to obtain them;

2. authorize funds for Respondent to retain a qualified forensic risk-assessment expert, with compensation up to the limit currently prescribed by County Law § 722-c;

3. seal this motion, all supporting papers, and any order granting or denying it, pursuant to Judiciary Law § 2-b(3) and 22 NYCRR 216.1, upon the good-cause finding requested above, so that the fact and substance of any evaluation Respondent obtains remain confidential unless and until Respondent elects to use it; and

4. grant such other and further relief as the Court deems just and proper.

Dated: [____], 2026
Rochester, New York

Respectfully submitted,

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